

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF ABDULMANOV AND OTHERS v. RUSSIA

(Applications nos. 5053/18 and 29 others –
see appended list)

JUDGMENT

STRASBOURG

20 July 2023

This judgment is final but it may be subject to editorial revision.



In the case of Abdulmanov and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Lətif Hüseynov*, President*,
Ivana Jelić,
Erik Wennerström*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 29 June 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, and having taken into account the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and

5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Grigoryev and Igamberdiyeva v. Russia* [Committee], no. 10970/12, 12 February 2019, about inadequate redress for unlawful deprivation of liberty in the context of administrative-offence prosecution for participation in public events; *Dirdizov v. Russia*, no. 41461/10, 27 November 2012, concerning excessive length of pre-trial detention; and *Idalov v. Russia,* [GC], no. 5826/03, 22 May 2012, about delays in examination of the complaints against detention orders; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Elvira Dmitriyeva v. Russia*, nos. 60921/17 and 7202/18, §§ 77-90, 30 April 2019, concerning administrative convictions for making calls to participate in public events; *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, §§ 106-225, 26 April 2016, concerning administrative convictions of solo-demonstrators; *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, and *Tsvetkova and Others*, cited above, §§ 178-88, related to lack of suspensive effect of an appeal against the sentence of administrative detention; *Korneyeva*, cited above, §§ 62-65, as to the right of the organisers or participants of public assemblies not to be tried and punished twice for the same offence.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraph 13 above, the Court considers that there is no need to deal separately with these complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 20 July 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Lətif Hüseynov
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
1.	5053/18 08/01/2018	**Roman Aydarovich ABDULMANOV** 1984	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally St Petersburg 12/06/2017	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	administrative detention of 5 days, fine of RUB 12,000	St Petersburg City Court 20/07/2017 and 25/07/2017	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12/06/2017 to 13/06/2017; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decisions: St Petersburg City Court, 20/07/2017 and 25/07/2017; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
2.	37350/19 29/06/2019	**Aleksandr Vladimirovich BUIMOV** 1994	Zboroshenko Nikolay Sergeyevich Mytishchi	March Moscow 15/02/2019 Rally against construction of highway	article 20.2 § 8 of CAO article 20.2 § 6.1 of CAO	administrative detention of 20 days administrative fine of RUB 10,000	Moscow City Court 27/02/2019 Moscow City Court 24/08/2020	Art. 5 (1) – unlawful deprivation of liberty: - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.20 p.m. on 20/02/2019 to 3.00 p.m. on 21/02/2019, the hearing in the applicant's administrative offence case;	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
				Yugo-Vostochnaya Khorda Moscow 19/03/2020				- escorting to a police station for the purpose of drawing up a record of administrative offence on 19/03/2020; Art. 6 (1) – lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decisions: Moscow City Court, 27/02/2019 and 24/08/2020	
3.	1777/20 21/12/2019 AND 9921/21 16/02/2021	**Sergey Yuryevich TIUNOV** 1968	Ruchko Irina Yuryevna Yekaterinburg	Political rally Yekaterinburg 07/07/2019 Rally in support of A. Navalnyy Yekaterinburg 31/01/2021	article 20.2 § 2 of CAO article 20.2 § 8 of CAO	administrative detention of 5 days administrative detention of 30 days	Sverdlovsk Regional Court 16/07/2019 Sverdlovsk Regional Court 05/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.10 a.m. on 07/07/2019 to 08/07/2019, the hearing in the applicant's administrative offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decisions: Sverdlovsk Regional Court, 06/11/2019, 16/07/2019, 05/02/2021 and 03/03/2022; Art. 10 (1) - conviction for making calls to participate in public events – conviction under art. 20.2 § 8 of the CAO, 100 hours of community works for an administrative offence of calling on the public to participate in an unauthorised public event scheduled for 03/08/2019 for fair elections to Mosgorduma. Final decision: 06/11/2019, Sverdlovsk Regional Court; Art. 10 (1) - disproportionate measures against solo demonstrators - solo picketing	6,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
								against war in Ukraine, on 24/02/2022, administrative conviction under art. 20.2 § 8 of the CAO, 30 days of administrative detention. Final decision: 03/03/2022, Sverdlovsk Regional Court	
4.	3183/20 27/12/2019	**Ruslan Vladimirovich TIMIRGALEYEV** 1979		Rally against demolition of a public bath Kazan 28/10/2019	article 20.1 § 1 of CAO	administrative detention of 5 days	Supreme Court of the Tatarstan Republic 01/11/2019	Art. 5 (1) – unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.45 p.m. on 11/10/2020 to 12/10/2020, the hearing in the applicant's administrative offence case; the applicant remained in detention after the offence record had been compiled; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Supreme Court of the Tatarstan Republic, 01/11/2019; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
5.	3189/20 12/12/2019	**Viktor Nikolayevich CHEKRYGIN** 1972	Sholokhov Igor Nikolayevich Kazan	March and rally against construction of a disposal site Arkhangelsk 07/04/2019	article 20.2 § 5 of CAO, article 20.2 § 6.1 of CAO	fines of RUB 15,000 and RUB 15,000	Arkhangelsk Regional Court 22/10/2019, both decisions of the same date	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final two decisions: Arkhangelsk Regional Court, 22/10/2019; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings -	4,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
								the applicant was convicted twice for participating in the same "hybrid" public event on 07/04/2019: under art. 20.2 § 6.1 and under art. 20.2 § 5 of the CAO	
6.	8425/20 24/01/2020	**Vladislav Dmitriyevich SIVKOV** 1996	Sholokhov Igor Nikolayevich Kazan	March and rally against construction of a disposal site Arkhangelsk 07/04/2019	Two separate counts of administrative charges under article 20.2 § 8 of CAO	administrative fines of RUB 160,000 and 155,000	Arkhangelsk Regional Court 17/09/2019, both decisions of the same date	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.30 p.m. on 21/08/2019 to 22/08/2019, the hearing in the applicant's administrative offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final two decisions: Arkhangelsk Regional Court, 17/09/2019; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participating in the same "hybrid" public event on 07/04/2019, under art. 20.2 § 8 of the CAO	7,000
7.	8438/20 24/01/2020	**Yelizaveta Vladimirovna KHATANZEYSKAYA** 1987	Sholokhov Igor Nikolayevich Kazan	March and rally against construction of waste incineration plant Arkhangelsk 07/04/2019	article 20.2 § 6.1 of CAO, article 20.2 § 5 of CAO	two administrative fines of RUB 10,000 each	Arkhangelsk Regional Court, 17/10/2019 and 05/12/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decisions: Arkhangelsk Regional Court, 17/10/2019 and 05/12/2019; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participating in the same "hybrid" public event on 07/04/2019: under art. 20.2 § 6.1 and under art. 20.2 § 5 of the CAO	3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
8.	10931/20 22/02/2020	**Petr Andreyevich YATSENKO** 1990	Memorial Human Rights Centre Moscow	Rally for fair elections to Mosgorduma Moscow 27/07/2019	article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 22/08/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 8.10 p.m. on 27/07/2019 to 5.40 p.m. on 29/07/2019; Art. 6 (1) – lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 22/08/2019	4,000
9.	26338/20 25/03/2020	**Yelena Ilyinichna FOKINA** 1985	Sholokhov Igor Nikolayevich Kazan	March and rally against construction of waste incineration plant Arkhangelsk 07/04/2019 Rally in support of A. Navalnyy Arkhangelsk 23/01/2021	article 20.2 § 6.1 of CAO, article 20.2 § 5 of CAO article 20.2 § 6.1 of CAO	two administrative fines of RUB 10,000 each fine of RUB 2,000	Arkhangelsk Regional Court, 17/10/2019 and 12/12/2019 Arkhangelsk Regional Court 16/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 31/01/2021 to 01/02/2021, the hearing in the applicant's administrative offence case; Art. 6 (1) – lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decisions: Arkhangelsk Regional Court, 17/10/2019, 12/12/2019 and 07/04/2021; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participating in the same "hybrid" public event on 07/04/2019, under art. 20.2 § 6.1 and under art. 20.2 § 5 of the CAO; Art. 10 (1) - conviction for making calls to participate in public events - conviction under art. 20.2 § 2 of the CAO to a fine of	5,000

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								RUB 20,000 for an administrative offence for calling on the public, on 22/01/2021, to participate in an unauthorised public event on 23/01/2021 in support to Mr A. Navalnyy. Final decision: 07/04/2021, Arkhangelsk Regional Court	
10.	33630/20 22/07/2020	**Svetlana Anatolyevna MARINA** 1967	Kosheleva Inna Viktorovna Kirov	Rally against political repressions Kirov 29/10/2019 Rally in support of A. Navalnyy Kirov 23/01/2021 Rally against political repressions Kirov 06/01/2022	article 20.2.2 § 1 of CAO article 20.2 § 8 of CAO article 20.2.2 § 1 of CAO	fine of RUB 5,000 administrative detention of 5 days fine of RUB 10,000	Kirov Regional Court 23/01/2020 Kirov Regional Court 04/03/2021 Kirov Regional Court 22/04/2022	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 01.00 p.m. on 27/01/2021 to 12.00 a.m. on 28/01/2021; - from 09.00 a.m. to 06.50 p.m. on 24/02/2022. In both cases, the applicant was retained until the hearings in her administrative offence cases; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decisions: Kirov Regional Court, 23/01/2020, 04/03/2021, 18/03/2022, 06/04/2022 and 22/04/2022; Art. 10 (1) - disproportionate measures against solo demonstrators - conviction under art. 20.2 § 2 of CAO to 5 days of administrative detention for solo picketing in Kirov on 15/01/2022. Final decision: 18/03/2022, Kirov Regional Court; Art. 10 (1) - conviction for making calls to participate in public events - conviction under art. 20.2 § 2 of CAO to 4 days of administrative detention for an administrative offence of calling on the	6,000

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								public, on 14/01/2022, to participate in an unauthorised public event on 15/01/2022 in support to Mr V. Ananyin. Final decision: 06/04/2022, Kirov Regional Court; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - as regards the cases concerning a rally in support to Mr A. Navalnyy and solo picketing (three counts): the sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	
11.	36049/20 28/07/2020	**Vladimir Ivanovich POPARETSKIY** 1968	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Rally for fair elections to Mosgorduma Moscow 10/08/2019	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 28/10/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.45 p.m. on 10/08/2019 to 4.30 a.m. on 11/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 28/10/2019	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
12.	41346/20 27/08/2020	**Ilya Grigoryevich RYKOV** 1990	Sholokhov Igor Nikolayevich Kazan	Rally and manifestation against construction of waste incineration plant Arkhangelsk 07/04/2019	article 20.2 § 6.1 of CAO, article 20.2 § 5 of CAO	fines of RUB 14,000 and RUB 12,000	Arkhangelsk Regional Court, 16/06/2020 and 29/06/2020	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decisions: Arkhangelsk Regional Court, 16/06/2020 and 29/06/2020; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participating in the same "hybrid" public event on 07/04/2019, under art. 20.2 § 6.1 and under art. 20.2 § 5 of the CAO	4,000
13.	52886/20 13/11/2020	**Sergey Vladimirovich KUZIN** 1979		Rally in commemoration of B. Nemtsov St Petersburg 29/02/2020 Rally in support of A. Navalnyy St Petersburg 31/01/2021	article 20.2 § 5 of CAO article 20.2.2 § 1 of CAO	fine of RUB 10,000 administrative detention of 7 days	St Petersburg City Court 11/08/2020 St Petersburg City Court 23/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence: - unlawful escorting on 12/03/2020, -unlawful detention at the police station from 5.10 p.m. on 20/04/2021 to 21/04/2021, the hearing of the applicant's administrative-offence case, in excess of 3 hours and without "exceptional circumstances"; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decisions: St Petersburg City Court, 11/08/2020 and 23/04/2021; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
14.	52904/20 13/11/2020	**Vasiliy Yevgenyevich KUNIN** 1993	Peredruk Aleksandr Dmitriyevich St Petersburg	Authorised rally on free elections St Petersburg 01/05/2019 Rally in commemoration of B. Nemtsov St Petersburg 29/02/2020	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	the administrative proceedings were terminated due to a lack of *corpus delicti* fine of RUB 10,000	Kuybyshevskiy District Court of St Petersburg 19/06/2019 St Petersburg City Court 11/08/2020	Art. 5 (1) and (5) – inadequate redress for unlawful deprivation of liberty - the applicant was arrested on 01/05/2019 during an authorised rally and detained in a police station in excess of 3 hours for the sole purpose of drawing up an administrative offence record. On 19/06/2019 the Kuybyshevskiy District Court of St Petersburg terminated the administrative proceedings due to a lack of *corpus delicti*. Subsequently, the applicant lodged a civil claim seeking compensation for non-pecuniary damage caused by unlawful arrest and prosecution. The domestic courts acknowledged the unlawful arrest and awarded RUB 3,000 (equivalent to EUR 35). Final decision: 02/04/2021, Supreme Court of Russia; Art. 5 (1) - unlawful deprivation of liberty - unlawful escorting to a police station on 12/03/2020, after the rally of 29/02/2020, for the sole purpose of drawing a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: St Petersburg City Court, 11/08/2020	4,500
15.	55337/20 25/11/2020	**Olga Anatolyevna PAVLOVA** 1962	Shchukin Andrey Yevgenyevich Nizhniy Tagil	Rally in support of manifestants in Khabarovsk Yekaterinburg 06/08/2020	article 20.2 § 6.1 of CAO	60 hours of compulsory community works	Sverdlovsk Regional Court 21/10/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 9.30 a.m. to 4.00 p.m. on 06/08/2020	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
16.	2489/21 14/12/2020	**Vladimir Gelyevich URALOV** 1957	Antokhin Yevgeniy Vyacheslavovich Moscow	Rally for fair elections to Mosgorduma Moscow 14/07/2019	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 16/06/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 7.50 p.m. on 14/07/2019 to 03.10 a.m. on 15/07/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 16/06/2020	4,000
17.	10325/21 15/01/2021	**Danila Viktorovich SHUMSKIY** 1996	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally against the construction of the south-eastern city highway at a nuclear waste disposal site Moscow 19/03/2020	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 18/08/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 9.10 p.m. on 19/03/2020 to 04.00 a.m. on 20/03/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 18/08/2020	4,000
18.	10917/21 01/02/2021	**Vadim Nikolayevich BELOTELOV** 1982	Aksenova Darya Dmitriyevna Kolomna	Rally against the construction of the south-eastern city highway at a nuclear waste disposal site Moscow 19/03/2020	article 19.3 § 1 of CAO	fine of RUB 1,000	Moscow City Court 18/08/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 9.20 p.m. on 19/03/2020 to early morning on 20/03/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
								offence proceedings – final decision: Moscow City Court, 18/08/2020	
19.	11126/21 01/02/2021	**Anastasiya Aleksandrovna PIKULINA** 1979	Memorial Human Rights Centre Moscow	Rally in support of Belarusian protests Moscow 20/09/2020	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 24/11/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 10.30 a.m. to 01.50 p.m. on 20/09/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 24/11/2020	4,000
20.	11145/21 01/02/2021	**Oleg Vadimovich RYABYSHEV** 1996	Memorial Human Rights Centre Moscow	Rally against the amendments to the Russian Constitution Moscow 15/07/2020	article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 02/09/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 9.30 p.m. on 15/07/2020 to 02.00 a.m. on 16/07/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 02/09/2020	4,000
21.	11160/21 28/01/2021	**Yekaterina Volfovna SMIRNITSKAYA** 1955	Aksenova Darya Dmitriyevna Kolomna	Rally in support of Konstantin Kotov Moscow 22/02/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 28/07/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.45 p.m. on 22/02/2020 to an unspecified time on the same day;	4,000

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								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 28/07/2020	
22.	13229/21 01/03/2021	**Oleg Tofilyevich GOLOVENKO** 1975	Ushakov Timofey Borisovich Kokoshkino	Rally in support of commemoration of those killed in the Second World War and against President Putin Moscow 22/06/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 02/09/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.40 to 11.50 p.m. on 22/06/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 02/09/2020	4,000
23.	13243/21 01/03/2021	**Ivan Valeryevich PEROV** 1974	Ushakov Timofey Borisovich Kokoshkino	Rally in support of commemoration of those killed in the Second World War and against President Putin Moscow 22/06/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 28/10/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.45 to 10.45 p.m. on 22/06/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 28/10/2020	4,000
24.	13248/21 01/03/2021	**Aleksandr Aleksandrovich REYN** 1997	Ushakov Timofey Borisovich Kokoshkino	Rally in support of commemoration of those killed in the Second World War and against President Putin	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 22/09/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.50 to 11.50 p.m. on 22/06/2020;	4,000

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				Moscow 22/06/2020				Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 22/09/2020	
25.	13251/21 01/03/2021	**Natalya Aleksandrovna SALAVATOVA** 1973	Ushakov Timofey Borisovich Kokoshkino	Rally in support of commemoration of those killed in the Second World War and against the president Putin Moscow 22/06/2020	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 26/10/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.45 to 11.45 p.m. on 22/06/2020; Art. 6 (1) – lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 26/10/2020	4,000
26.	13453/21 14/02/2021	**Ivan Sergeyevich KHAREBIN** 1988	Yatsenko Irina Aleksandrovna Moscow	Rally for fair elections to Mosgorduma Moscow 14/07/2019	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 14/08/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 8.00 p.m. on 14/07/2019 to 2.50 a.m. on 15/07/2019; Art. 6 (1) – lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 14/08/2020	4,000
27.	13791/21 24/02/2021	**Konstantin Vyacheslavovich LARIONOV** 1996		Rally in support to A. Navalnyy Kaluga 23/01/2021	article 20.2.2 § 1 of CAO	administrative detention of 11 days	Kaluga Regional Court 29/01/2021	Art. 10 (1) - disproportionate measures against solo demonstrators – conviction, under art. 5.12 § 1 of the CAO to an administrative fine of RUB, 5,000, for solo picketing in Kaluga, on 21/08/2021, support of the Communist party in Parliamentary elections of 19/09/2021.	5,000

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								Final decision: Kaluzhskiy District Court of the Kaluga Region, 24/09/2021	
28.	15042/21 24/02/2021	**Sergey Nikolayevich FEDOROV** 1982	Memorial Human Rights Centre Moscow	Rally against the constitutional amendments Moscow 15/07/2020	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 12/10/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 9.35 p.m. on 15/07/2020 to 01.16 a.m. on 16/07/2020; Art. 6 (1) – lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 12/10/2020	4,000
29.	49887/21 22/09/2021	**Dmitriy Sergeyevich CHEBANOV** 1977	Bochilo Anna Yevgenyevna Barnaul	Rally in support of A. Navalnyy Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 17/05/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 01.45 to 6.30 p.m. on 23/01/2021; Art. 5 (3) - excessive length of pretrial detention - Basmannyy District Court of Moscow; from 16/09/2021 – pending on the date when the application was lodged with the Court (and at least until the middle of 2022); use of assumptions, in the absence of any evidentiary basis, of the risks of absconding or obstructing justice; failure to assess the applicant's personal situation reducing the risks of re-offending, colluding or absconding; collective detention orders; fragility of the reasons employed by the courts;	6,000

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								Art. 5 (4) - deficiencies in proceedings for review of the lawfulness of detention – two counts: - detention order by the Basmannyy District Court of 09/11/2021; appeal introduced on 12/11/2021; reviewed by the Moscow City Court on 14/12/2021. The review took 35 days in total, where the applicant may be held responsible for 3 days, - detention order by the Basmannyy District Court of 10/02/2022; appeal introduced on 13/02/2022; reviewed by the Moscow City Court on 30/03/2022. The review took 48 days in total, where the applicant may be held responsible for 3 days; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 17/05/2021	

[1] Plus any tax that may be chargeable to the applicants.